

**ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT**

W. P. No.20764 of 2015.

Dr. Asif Mehmood Hamraz.

Versus

Government of Punjab etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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16.09.2015. Ch. Muhammad Rasheed, Advocate for the petitioner.
Mr. Muhammad Asif Iqbal, Law Officer of Health
Department.

Brief facts, necessary for disposal of instant petition, are that the petitioner, during his service in Health Department as Medical Officer, became a patient of bilateral internal ear disease, which led to profound deafness and he suffered more than 90% bilateral hearing loss. The ENT Surgeons advised him Cochlear Implant Surgery (hereinafter referred to as the ‘**Surgery**’) to restore hearing. Petitioner requested to the Secretary, Government of Punjab / respondent No. 2 for financial support regarding the petitioner’s Surgery. Accordingly, respondent No. 2 / Competent Authority issued a letter vide No.SO(PH)14-53/2009 dated 22.12.2009, ordered evaluation through Special Medical Board (‘**SMB**’) at Services Hospital, Lahore and also asked to ascertain actual disease, extent of ailment, type of treatment and estimated cost to be incurred with recommendation of SMB. Thereafter, vide letter No.M.S/312-13-S-H dated 20.01.2010, the SMB examined the petitioner and reviewed the medical records which fulfilled the requirement of Surgery. The SMB recommended the petitioner to be benefited by said Surgery at a private hospital. The SMB further mentioned that this procedure is not being done in any public sector hospital under the command and control of Government of Punjab or

Secretary Health. During the said ailment period, the petitioner got very serious attack of disease and lost maximum bilateral hearing and consequently the petitioner became unable to manage his routine life. There was no other option left except Surgery in emergency. The petitioner was obliged to get operation at National Hospital, Defence Lahore to minimize his effect of disease on 23.02.2010 and incurred an amount of Rs. 2 Million, which the petitioner managed to get different means i.e. loans etc. After the surgery, petitioner applied for reimbursement of said amount and continuously followed up his case, but no positive response was transmitted from respondents' side. Thereafter, the petitioner submitted the application which was replied in negative. He has already retired from service on medical ground w.e.f. 02.07.2013. But despite repeated applications and visits, his grievance has not been redressed, which necessitated him to file instant petition with the following prayer:-

“Under the above said submissions the writ petition may kindly be accepted and respondents be directed to make the payment of Rs 20 Lac which incurred on the medical treatment of the petitioner after the recommendation of special medical board and the discharge slip issued by the national hospital DHA Lahore.

It is further prayed that the amount of reimbursement be ordered to be paid along with the late payment charges as prescribed by the state bank of Pakistan accordingly.

Any further relief which the petitioner found entitled be awarded.”

2. Learned counsel for the petitioner submits that competent authority had already recommended that the treatment of said disease of petitioner is not available in any Government Hospital of Punjab and, therefore, petitioner got conducted his surgery from National Hospital, Defence, Lahore, in emergency by incurring a huge sum of Rs. 2

Million. Further submits that despite the said recommendation of the SMB, the respondents have failed to reimburse the aforesaid amount.

3. On the other hand, learned Law Officer submits that the Health Department initiated a summary for the Chief Minister Punjab for an Ex-Gratia grant of Rs. 2 Million for financial assistance of petitioner, as a case of special dispensation in order to meet the heavy expenses of the treatment / surgery. The Chief Minister Punjab, being the Competent Authority, rejected the request in view of the stringent financial position of the Province. He adds that without approval of summary, the petitioner got himself operated on 23.02.2010, therefore, the claim of petitioner for reimbursement is devoid of merit and this petition, being not maintainable, is liable to be dismissed.

4. I have heard the arguments of learned counsel and perused the record with their assistance.

5. The matter in issue is covered by the provisions of The West Pakistan Government Servants (Medical Attendance) Rules, 1959 (**'Rules'**). Rule 3 of the said Rules reads as follows:-

"3. (1) A Government servant shall be entitled, free of charge to medical attendance by the authorized medical attendant.

(2) Where a Government servant is entitled under sub-rule (1) free of charge to receive medical attendance, any amount paid by him on account of such treatment shall, on production of a certificate in writing by the authorized medical attendant in this behalf and subject to such instruction as may be issued by the Government from time to time be reimbursed to him by Government."

The relevant portion of Rule 6 is also reproduced hereunder:-

"6. (1) A Government servant shall be entitled, free of charge:

(i) to treatment;

(a) in such Government hospital at or near the place where he falls ill as can, in the opinion of the authorized medical attendant, provide the necessary and suitable treatment; or

(b) if there is no such hospital as is referred to in sub-clause (a) in such hospital other than a Government hospital at or near that place as can in the opinion of the authorized medical attendant, provide the necessary and suitable treatment;”

6. Perusal of afore-quoted rules indicates that the Government servant is entitled to free of charge medical treatment by the authorized medical attendant and any amount paid by him on account of such treatment shall, on production of a certificate in writing by the authorized medical attendant, is entitled to reimbursement of the said amount. The Rules further declare that Government servant shall be entitled, free of charge treatment in such Government Hospital at or near that place where he falls ill which can provide the necessary and suitable treatment. If no such facility of treatment is available in Government Hospital, then in such hospital other than a Government hospital at or near that place which, in the opinion of the authorized medical attendant, can provide the necessary and suitable treatment.

7. Admitted position in the instant case is that the petitioner submitted an application for grant of assistance for his medical treatment. The treating doctors at Services Hospital, Lahore had advised him Surgery for his treatment. The Health Department constituted a SMB, comprising Senior Consultants to examine the petitioner. The SMB, after examining the petitioner, furnished its report, which is summarized as under:-

“The Special Medical Board (S.M.B.) assembled on 02-01-2010 and advised certain investigations. After receipt of investigations, the Medical Board again met on 07-01-2010 and opined as under:-

CT Scan and MRI of the patient. Dr. Asif Mehmood were reviewed and it fulfills the

requirements of Cochlear Implant Surgery. Currently, this procedure is not being done in any Public Sector Hospital of the Punjab; however, this procedure is being done in the Private Sector.”

The report of SMB reveals that petitioner was suffering from Bilateral Deafness for which Cochlear Implant had been advised by the treating Physicians. The Health Department initiated a summary for the Chief Minister Punjab for an Ex-Gratia grant of Rs. 2 Million for financial assistance of petitioner, as a case of special dispensation in order to meet the heavy expenses of the treatment. The only ground for disentitlement of the re-imbursement of the aforesaid expenses, given by the respondents is that Chief Minister, being Competent Authority, rejected the request in view of the stringent financial position of the province. This stance of respondents is absolutely contrary and alien to the afore-quoted Rules 3 & 6. It is to be noted that the petitioner undisputedly became a patient of bilateral internal ear disease during his service in Health Department as Medical Officer and Cochlear Implant Surgery was necessary for his treatment, and it was the responsibility of the Government to provide him adequate medical treatment which was admittedly not available at any public sector hospital of the Punjab, therefore, in emergency the petitioner had no other option except to get operated at a private sector hospital. After the surgery, the petitioner has taken the necessary procedural steps for the reimbursement of expenses of his treatment / surgery. Stringent financial position of the Province and treatment without prior approval of summary are not valid grounds to reject claim of reimbursement of expenses incurred by a petitioner on his treatment especially when the Special Medical Board constituted by the Government itself reported that the CT Scan and MRI of the petitioner fulfills the

requirements of Cochlear Implant Surgery which was being done in the Private Sector only. In cases of urgent nature or emergency, where the question of life is involved or a disease may disable the patient, it is not possible for the Government servant to wait for prior approval from the Government department before proceeding with his treatment as the procedural delay in getting such approval may nullify the very object of such relief to be granted by the Government to the Government servant. Sanction can always be granted post facto, keeping in view the emergency involved in the case in hand. Therefore, the rejection of the claim of the petitioner by the respondents without examining it on merits is illegal and unjustified and the petitioner is entitled to reimbursement of charges incurred by him on his medical treatment. In this regard, I agree with the opinion expressed by the learned Service Tribunal Sindh in the case of Nazir Ahmed Siddiqui v. Government of Sind and 2 Others (1981 PLC (C.S.) 467) that even if not prior sanction is obtained, such claim has to be examined on merits. The relevant portion of said judgment reads as under:-

“The only question therefore left to be decided is whether the claim of the appellant could be rejected merely on the ground that prior sanction of the Finance Department for incurring the expenditure was not obtained. The cases requiring medical treatment abroad are usually of urgent nature and in an emergency when the question of life of the patient is involved. It is not possible for the patient to apply for sanction and wait for the concurrence of the Finance Department before proceeding abroad. It is usual for the department in such cases to ask or clarifications and refer the case back with number of queries before sanctioning the expenditure; and this procedure if adopted may nullify the very object of granting the relief. In any cast the question is of "reimbursement" which is subsequent to the incurring of expenditure for medical treatment and not of "prior sanction". A patient would not know even the approximate amount required to be spent

before going abroad. The question of prior sanction would, therefore, be meaningless. In any case there could be no bar to the examination of the case of the appellant for deciding the question of reimbursement of medical charges. Sanction can also be granted post facto looking to the emergency. There is nothing in the circular above referred to, requiring prior concurrence of the Government, specially when all the conditions laid down in the circular are fulfilled. The rejection of the claim of the appellant summarily without examining the claim on merits was, therefore, unjustified. We are accordingly of the view that on the facts of this case, and the policy laid down by the Government, the case of the appellant for reimbursement is one that ought to be allowed.”

8. For the foregoing reasons, this petition is **allowed** and respondent No.1 is directed to initiate necessary steps for approval of summary from Chief Minister for reimbursement of medical expenses incurred by the petitioner on his Cochlear Implant Surgery, within a period of two months, under intimation to this Court through Deputy Registrar (Judicial).

(Muhammad Sajid Mehmood Sethi)
Judge

Approved for Reporting.